

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ANDRE GREEN,

Plaintiff,

-against-

CITY OF NEW YORK, DETECTIVE LOUIS
DAMBROSIO, SHIELD NUMBER 4008,
DETECTIVE MATTHEW CERNY, SHIELD
NUMBER 06487, AND UNDERCOVER
DETECTIVE NUMBER 288,Defendants.
-----X

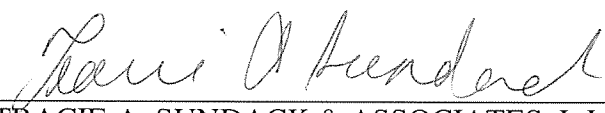
Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.Basis of venue is place
of occurrence.**SUMMONS**Plaintiff resides at
699 East 133rd Street
Bronx, New York 10454

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: White Plains, New York
August 30, 2017

TRACIE A. SUNDACK & ASSOCIATES, L.L.C.
By: Tracie A. Sundack, Esq.
Attorneys for Plaintiff
ANDRE GREEN
19 Court Street, 3rd Floor
White Plains, New York 10601
(914) 946-8100

Defendant's address:

CITY OF NEW YORK
100 Church Street
New York, New York 10007DETECTIVE LOUIS DAMBROSIO, SHIELD
NUMBER 012777,
DETECTIVE MATTHEW CERNY, SHIELD
NUMBER 06487,
UNDERCOVER DETECTIVE NUMBER 288
Narcotics Borough Manhattan North
451 West 151st Street
New York, New York 10031

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
ANDRE GREEN,

Plaintiff,

Index No.:

-against-

CITY OF NEW YORK, DETECTIVE LOUIS
DAMBROSIO, SHIELD NUMBER 4008,
DETECTIVE MATTHEW CERNY, SHIELD
NUMBER 06487, AND UNDERCOVER
DETECTIVE NUMBER 288,

VERIFIED COMPLAINT

Defendants.
-----X

Plaintiff ANDRE GREEN by and through his attorneys, TRACIE A. SUNDACK & ASSOCIATES, L.L.C., complaining of Defendants CITY OF NEW YORK, DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, respectfully alleges as follows:

1. That at all times hereinafter mentioned Defendant CITY OF NEW YORK was and still is a municipal corporation duly organized and existing under and by virtue of the General Municipal Law of the State of New York.

2. That at all times hereinafter mentioned Defendant CITY OF NEW YORK, its agents servants and employees operated, maintained and controlled The New York City Police Department, including all the police officers thereof.

3. That at all times hereinafter mentioned Defendant DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, was employed by Defendant CITY OF NEW YORK as a police officer.

4. That at all times hereinafter mentioned Defendant DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, acted within the scope of his employment for Defendant CITY OF NEW YORK.

5. That at all times hereinafter mentioned Defendant DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, was assigned to Narcotics Borough Manhattan North (451 West 151st Street, New York, New York 10031).

6. That at all times hereinafter mentioned Defendant DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said county and city.

7. That at all times hereinafter mentioned Defendant DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, was employed by Defendant CITY OF NEW YORK as a police officer.

8. That at all times hereinafter mentioned Defendant DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, acted within the scope of his employment for Defendant CITY OF NEW YORK.

9. That at all times hereinafter mentioned Defendant DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, was assigned to Narcotics Borough Manhattan North (451 West 151st Street, New York, New York 10031).

10. That at all times hereinafter mentioned Defendant DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said county and city.

11. That at all times hereinafter mentioned Defendant UNDERCOVER DETECTIVE NUMBER 288 was employed by Defendant CITY OF NEW YORK as a police officer.

12. That at all times hereinafter mentioned Defendant UNDERCOVER DETECTIVE NUMBER 288 acted within the scope of his employment for Defendant CITY OF NEW YORK.

13. That at all times hereinafter mentioned Defendant UNDERCOVER DETECTIVE NUMBER 288 was assigned to Narcotics Borough Manhattan North (451 West 151st Street, New York, New York 10031).

14. That at all times hereinafter mentioned Defendant UNDERCOVER DETECTIVE NUMBER 288 was acting under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the County and City of New York, and under the authority of his office as a police officer for said county and city.

15. That on August 27, 2015, at approximately 4:00 P.M., Plaintiff ANDRE GREEN was lawfully present in front of 419 West 126th Street in the County, City and State of New York, when he was suddenly accosted by members of the New York City Police Department including Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288.

16. That, at the aforementioned date, time and place, Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, ordered Plaintiff ANDRE GREEN to place his hand against a nearby wall. After Plaintiff ANDRE GREEN complied, Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, searched Plaintiff. Upon information and belief, the search failed to find any evidence of illegal activity or give cause for Plaintiff ANDRE GREEN's arrest. After the search was completed, Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, handcuffed Plaintiff ANDRE GREEN and placed him under arrest for Criminal Sale of a Controlled Substance despite Defendants' knowledge that they lacked reasonable grounds or probable cause to do so.

17. That, on August 27, 2015, at approximately 4:00 P.M., Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, without legal process, forcibly, wrongfully and unlawfully arrested Plaintiff ANDRE GREEN.

18. That Plaintiff ANDRE GREEN was then transported to the 32nd Precinct (250 West 135th Street, New York, NY, 10030-2802) of the New York City Police Department where he was subjected to an illegal strip-search and his arrest was processed. Plaintiff ANDRE GREEN was then transported to Central Booking for arraignment.

19. That on August 28, 2015, at approximately 3:00 P.M., following arraignment, Plaintiff ANDRE GREEN was released from custody on his own recognizance

20. That on February 2, 2016, all criminal charges (Docket Number 2015NY055384 - Criminal Court of the City of New York) against Plaintiff ANDRE GREEN were dismissed by Order of the Honorable Ushir Pandit-Durant, .

**AS AND FOR A FIRST CAUSE OF ACTION FOR
FALSE ARREST UNDER 42 U.S.C. § 1983**

21. Plaintiff ANDRE GREEN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

22. That at the aforementioned time and place, Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, placed Plaintiff ANDRE GREEN under arrest despite Defendants' knowledge that they lacked probable cause to do so.

23. That Plaintiff ANDRE GREEN had not committed any offense and Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, did not have reasonable grounds or probable cause to believe that Plaintiff had committed any offense.

24. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, were aware that probable cause did not exist for the arrest and detention of Plaintiff ANDRE GREEN and that said arrest and detention was illegal, without justification or excuse, and without authority of law, and the Defendants acted with malicious intent to arrest, oppress, and injure Plaintiff ANDRE GREEN and such actions were committed in bad faith.

25. That, in all of the wrongful acts above alleged, Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, acted without reasonable or probable cause and with malicious intent to arrest, oppress, and injure Plaintiff ANDRE GREEN and such actions were committed in bad faith.

26. As a direct and proximate result of the above-described unlawful and malicious acts of Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, all committed under color of their authority as police officers, and while acting in that capacity, Plaintiff ANDRE GREEN was deprived of the rights and immunities secured to him under the Constitutions and laws of the United States and of the State of New York, in particular the First, Fourth, Fifth, Eighth and Fourteenth Amendments thereof, and 42 U.S.C. §§ 1981, 1983, and 1985 (2) and (3), his liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

27. As a further result of the above-described acts, Plaintiff ANDRE GREEN was deprived of the rights and immunities secured to him under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
FALSE IMPRISONMENT UNDER 42 U.S.C. § 1983**

28. Plaintiff ANDRE GREEN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

29. That Plaintiff ANDRE GREEN was falsely imprisoned from approximately 4:00 PM on August 27, 2015, to approximately 3:00 PM. on August 27, 2015, by Defendant CITY OF NEW YORK, its agents, servants, and employees, including but not limited to Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, who procured and/or effected said false imprisonment knowing their actions to be wrongful and

malicious and without any basis.

30. That Defendant CITY OF NEW YORK by and through its agents, servants, and employees, including but not limited to, Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, intended to confine Plaintiff ANDRE GREEN and Plaintiff ANDRE GREEN was conscious of the confinement, and Plaintiff ANDRE GREEN did not consent to the confinement.

31. That Defendants' words, actions, and the charges laid by them were willful, malicious, false, wrongful, without reason or basis and without probable cause and committed in bad faith and solely for the purpose of falsely imprisoning Plaintiff ANDRE GREEN and damaging Plaintiff ANDRE GREEN in his reputation and depriving him of his liberty.

32. That as a direct and proximate result of the above-described unlawful and malicious acts of Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, all committed under color of their authority as police officers for Defendant CITY OF NEW YORK, and while acting in that capacity, Plaintiff ANDRE GREEN suffered damage, all of which is in violation of his rights under the Constitution and laws of the United States and of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983**

33. Plaintiff ANDRE GREEN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

34. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, misrepresented and falsified evidence before the District Attorney.

35. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, did not make a complete and full statement of facts to the District

Attorney.

36. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, withheld exculpatory evidence from the District Attorney.

37. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, were directly and actively involved in the initiation of criminal proceedings against Plaintiff ANDRE GREEN.

38. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, lacked probable cause to initiate criminal proceedings against Plaintiff ANDRE GREEN.

39. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, acted with malice in initiating criminal proceedings against Plaintiff ANDRE GREEN.

40. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, were directly and actively involved in the continuation of criminal proceedings against Plaintiff ANDRE GREEN.

41. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, lacked probable cause to continue criminal proceedings against Plaintiff ANDRE GREEN.

42. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, acted with malice in continuing criminal proceedings Plaintiff

ANDRE GREEN.

43. That Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, misrepresented and falsified evidence throughout all phases of the criminal proceeding.

44. That, notwithstanding the perjurious and fraudulent conduct of Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, the criminal proceedings were terminated in Plaintiff ANDRE GREEN's favor.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR
FAILURE TO INTERVENE**

45. Plaintiff ANDRE GREEN repeats, reiterates and realleges each and every allegation contained in this complaint.

46. Each and every individual Defendant had an affirmative duty to intervene on Plaintiff ANDRE GREEN's behalf to prevent the violation of his constitutional rights and failed to so intervene despite having had a realistic opportunity to do so.

47. As a result of the aforementioned conduct of the individual Defendants, Plaintiff ANDRE GREEN's constitutional rights were violated and he was subjected to excessive force and sustained physical injuries.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR
MUNICIPAL LIABILITY**

48. Plaintiff ANDRE GREEN repeats, reiterates, and realleges each and every paragraph of this complaint and further alleges:

49. Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

50. That the aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department included, but were not limited to, wrongfully detaining minority males based on racial profiling and making unlawful arrests in order to satisfy an arrest quota.

51. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff ANDRE GREEN.

52. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff ANDRE GREEN as alleged herein.

53. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by Plaintiff ANDRE GREEN as alleged herein.

54. Defendants DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, collectively and individually, while acting under the color of state law, were directly and actively involved in violating Plaintiff ANDRE GREEN's constitutional rights.

55. All of the foregoing acts by defendants deprived Plaintiff ANDRE GREEN of federally protected rights including, but not limited to, the right:

- A. Not to be deprived of liberty without due process;
- B. To be free from seizure and arrest not based on probable cause;
- C. To be free from unlawful search;
- D. Not to have cruel and unusual punishment imposed upon him;
- E. To receive equal protection under the law.

56. As a result of the foregoing, Plaintiff ANDRE GREEN is entitled to compensatory damages in the sum of One Million Dollars (\$1,000,000.00) and is further entitled to punitive damages against the individual Defendants in the sum of Three Million Dollars (\$3,000,000.00)

WHEREFORE Plaintiff ANDRE GREEN demands judgment against Defendants CITY OF NEW YORK, DETECTIVE LOUIS DAMBROSIO, SHIELD NUMBER 4008, DETECTIVE MATTHEW CERNY, SHIELD NUMBER 06487, and UNDERCOVER DETECTIVE NUMBER 288, jointly and severally, in the amount of One Million Dollars (\$1,000,000.00) in compensatory damages and Three Million Dollars (\$3,000,000.00) in punitive damages, plus reasonable attorney's fees, costs and disbursements of this action.

Dated: White Plains, New York
August 30, 2017



TRACIE A. SUNDACK & ASSOCIATES, L.L.C.

By: Tracie A. Sundack, Esq.

Attorneys for Plaintiff

ANDRE GREEN

19 Court Street, 3rd Floor

White Plains, New York 10601

(914) 946-8100

ATTORNEY'S VERIFICATION

STATE OF NEW YORK }
COUNTY OF WESTCHESTER } SS.:

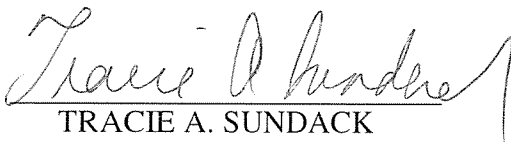
I, the undersigned, an attorney admitted to practice in the Courts of the State of New York, state:

That I am the attorney of record for the Plaintiff in the within action.

That I have read the foregoing SUMMONS and COMPLAINT and know the contents thereof; the same is true to my own knowledge, except for the matters therein alleged to be on information and belief, and as to those matters I believe them to be true. The reason this Verification is made by me and not by the Plaintiff is that Plaintiff resides outside the County where your affirmant maintains his office. The grounds of my belief as to all matters not stated upon my own knowledge are as follows: files maintained by my office and conversations with Plaintiff.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: White Plains, New York
August 30, 2017


TRACIE A. SUNDACK